

DURABLE POWER OF ATTORNEY

Parties

Principal: _____

Agent: _____

Successor Agent (if the Agent is unable or unwilling to serve): _____

Durability — Effect of Incapacity

This power of attorney is intended to be durable. The authority granted to the Agent under this document shall not be affected by, and shall continue notwithstanding, the later incapacity or disability of the Principal, to the extent permitted by the durable power of attorney statute of the state whose law governs this document.

Effective Date

Effective Date: ____ / ____ / ____

This power of attorney is effective immediately upon signing unless the Principal instead specifies below that it should only become effective upon a determination that the Principal is incapacitated (a "springing" power of attorney), and describes how that determination is to be made:

Springing Condition (if any): _____

Scope of Authority Granted

The Principal grants the Agent broad authority to act on the Principal's behalf regarding the Principal's financial and legal affairs generally, including banking and financial accounts, real property transactions, tax matters, insurance and retirement or government benefits, and routine business decisions, except as limited below.

Additional Instructions or Limitations: _____

Agent's Duties and Compensation

The Agent shall act in good faith, within the scope of authority granted, and in the Principal's best interest, and shall keep records of significant transactions undertaken on the Principal's behalf.

Agent's Compensation (if any): _____

Reliance by Third Parties

Any third party who acts in good faith reliance on this document, or a copy of it, without actual knowledge that it has been revoked or terminated, may rely on it as if it remained in full force and effect.

Revocation

The Principal may revoke this power of attorney at any time while competent to do so by delivering written notice of revocation to the Agent and to any third party relying on it.

Notarization and State Requirements

Durable powers of attorney frequently must be notarized, and some states require specific statutory wording or a statutory form before banks, title companies, or government agencies will honor them. Requirements vary by state and by the scope of authority granted. Confirm the notarization and any statutory-form requirements that apply where the Principal lives and where the Agent will use this document, and arrange for notarization accordingly before relying on it.

Governing Law

This Power of Attorney shall be governed by the laws of the State/Country of _____, without regard to its conflict-of-law principles.

Signatures

Principal Signature: _____

Name: _____

Date: ____ / ____ / ____

Agent Signature: _____

Name: _____

Date: ____ / ____ / ____